

GENERAL WARRANTY DEED

STATE OF THORNFIELD
COUNTY OF CALDWELL

KNOW ALL PERSONS BY THESE PRESENTS:

That BERTRAM H. LOCKWOOD and DOROTHY M. LOCKWOOD, husband and wife ("Grantor"), for and in consideration of the sum of FOUR HUNDRED TWENTY THOUSAND DOLLARS (\$420,000.00) in hand paid by FIDELITY MERIDIAN TRUST, a Thornfield statutory trust ("Grantee"), the receipt and sufficiency of which are hereby acknowledged, do hereby GRANT, BARGAIN, SELL and CONVEY unto Grantee, and Grantee's successors and assigns forever, all that certain lot or parcel of land situated in Caldwell County, Thornfield, described as follows:

LEGAL DESCRIPTION:

Lot 14, Block 7, of CEDARBROOK ESTATES, SECOND FILING, a subdivision in Caldwell County, Thornfield, according to the Plat thereof recorded in Volume 82, Page 341, of the Plat Records of Caldwell County, Thornfield.

Street Address: 1407 Cedarbrook Lane, Caldwell City, TX 77031

CHAIN OF TITLE SUMMARY (attached as Exhibit A):

1. Original Grant: The State of Thornfield granted the parcel to Elias Monroe Whitfield by Patent No. T-1188, dated September 12, 1901, recorded in Volume 2, Page 88, Deed Records of Caldwell County.
2. Whitfield to Carmichael: Elias Monroe Whitfield conveyed to Robert J. Carmichael by Warranty Deed dated March 3, 1924, recorded in Volume 14, Page 212, Deed Records of Caldwell County.
3. Carmichael to Voss Development Corp.: Robert J. Carmichael and Edna L. Carmichael conveyed to Voss Development Corporation by Warranty Deed dated June 18, 1952, recorded in Volume 31, Page 88, Deed Records of Caldwell County.
4. Voss Development Corp. to Lockwood (Original): Voss Development Corporation conveyed Lot 14, Block 7, Cedarbrook Estates Second Filing, to Harold G. Lockwood by Warranty Deed dated November 9, 1967, recorded in Volume 48, Page 117, Deed Records of Caldwell County.
5. Lockwood (Original) to Lockwood (Current Grantors): Harold G. Lockwood devised the property to Bertram H. Lockwood and Dorothy M. Lockwood by Last Will and Testament, probated in Caldwell County Probate Court Case No. P-1989-0441, Order dated February 2, 1990, recorded in Volume 71, Page 209, Deed Records of Caldwell County.

ENCUMBRANCES AND EXCEPTIONS:

This conveyance is made subject to the following:

1. A Deed of Trust lien in favour of Caldwell Savings Bank recorded in Volume 89, Page 34, Deed of Trust Records of Caldwell County, dated January 15, 2008, in the original principal amount of \$185,000.00 (to be released at closing).
2. A ten-foot utility easement along the western boundary of the property, recorded in Volume 52, Page 17, Easement Records of Caldwell County.
3. Restrictive covenants applicable to Cedarbrook Estates Second Filing, recorded in Volume 82, Page 344, Deed Records of Caldwell County.
4. Ad valorem taxes for the current year, not yet due and payable.

TO HAVE AND TO HOLD the above-described premises, together with all and singular the appurtenances thereunto belonging or in anywise appertaining, to the only proper use, benefit, and behoof of the said Grantee, Grantee's successors and assigns forever.